

HOUSE No. 823

The Commonwealth of Massachusetts

PRESENTED BY:

Paul J. Donato

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to election emergencies.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Paul J. Donato</i>	<i>35th Middlesex</i>	<i>1/16/2025</i>

HOUSE No. 823

By Representative Donato of Medford, a petition (accompanied by bill, House, No. 823) of Paul J. Donato relative to the regulation of elections in certain emergency situations. Election Laws.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to election emergencies.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 54 of the General Laws, as appearing in the 2022 official edition, is
2 amended by inserting after 62 the following section:

3 “62A. Postponement and extension of qualifying periods for elections for public office
4 during state of emergency; Procedures for the Orderly Administration of Elections; Limitations.

5 Section 62A. (a) The state secretary shall have the authority to regulate elections in
6 emergency situations, including when the governor declares a state of emergency or a federal
7 agency declares a state of emergency or disaster exists. Such authorization shall include, but not
8 be limited to:

9 (1) Postponing or extending the qualifying periods provided in this chapter for the
10 qualification of candidates seeking municipal, county, or state-wide office; and

11 (2) Postponing the date of any primary, special primary, preliminary, election, or
12 special election in the affected area; and

(3) Providing for procedures for the orderly conduct elections; and

(4) In the case of municipal elections, postponing or suspending such local election, including a preliminary, after consultation with local election officials.

Any such postponement or extension shall not exceed 45 days.

(b) The secretary of the commonwealth shall adopt, by rule or regulation, an elections emergency contingency plan, which shall contain goals and policies that give specific direction to state and local elections officials when an election has been suspended or delayed due to an emergency or alternate voting procedures are necessary. The contingency plan shall address, but not be limited to, the following concerns:

(1) Providing a procedure for state and local elections officials to follow when an election has been suspended or delayed to ensure notice of the suspension or delay to the proper authorities, the electorate, the communications media, poll workers, and the custodians of polling places.

Providing a procedure for the release and certification of election returns and documents relating to the election to the secretary's office for elections suspended or delayed and subsequently rescheduled under the provisions this section."